

Protection from Sexual Exploitation and Abuse (PSEA) Policy

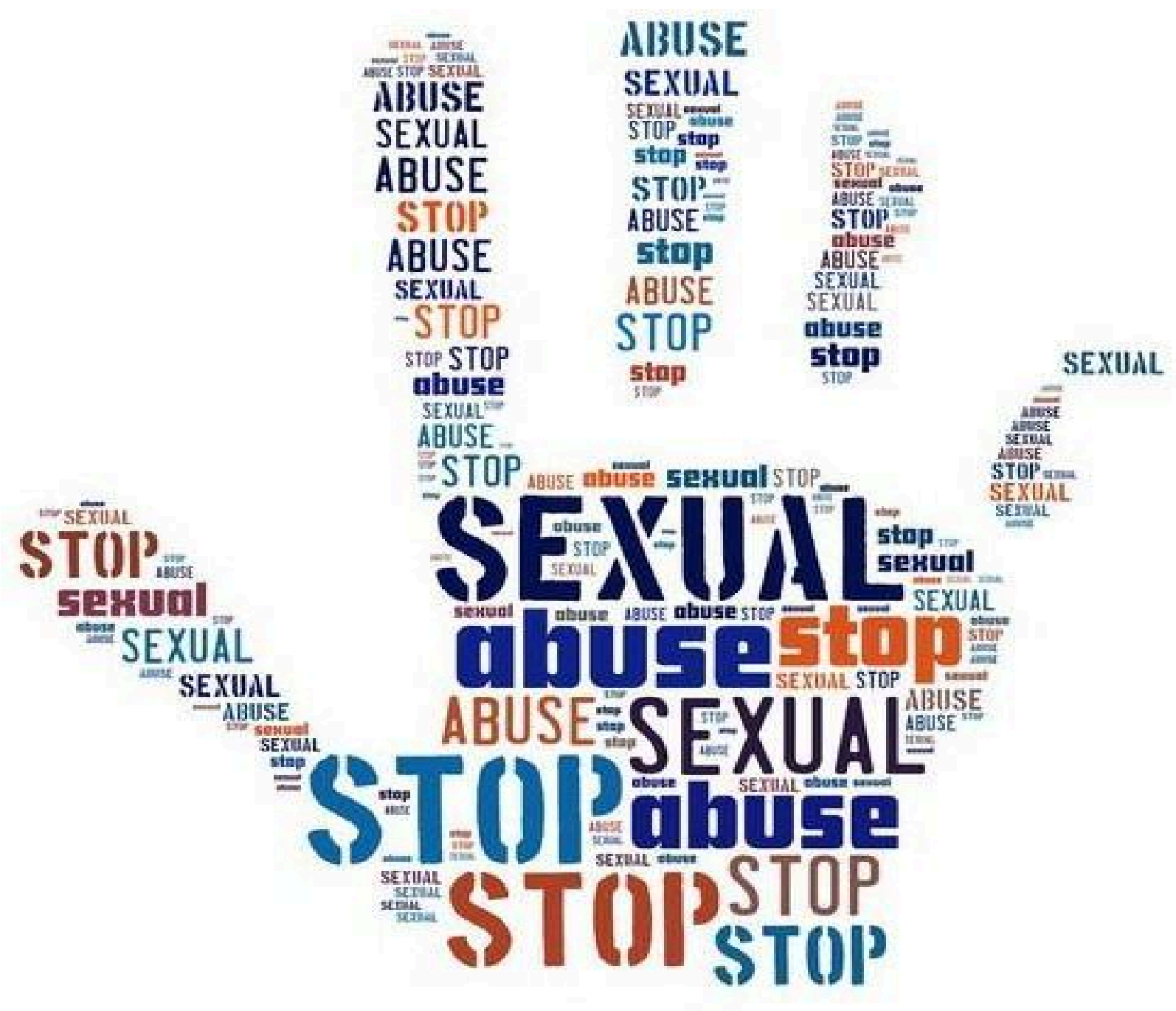


Table of Contents

Sl. No.	Contents	Page No.
1.	Policy Introduction	3
2.	Accountability Statement	3
3.	Policy Approach	4
4.	Framework Principles	4
5.	Policy Implementation	5
6.	Responsibilities	8
7.	PSEA/Safeguarding Committee	9
8.	Confidentiality of Complaint	11
9.	Whistle-Blowing	12
10.	PSEA Commitments	12
11.	Consequences	14
12.	Communication and training for PSEA	14
13.	PSEA Reporting Procedures	16
14.	Support for Survivors	18
15.	Referral forms for survivors	18
16.	Policy Review	20
17.	<i>Annexure – 1 - Definitions</i>	21
18.	<i>Annexure – 2 – Action Plan on PSEA</i>	24
19.	<i>Annexure – 3 – Signatures of Employees</i>	25

1. Policy Introduction

Swaniti Initiative has zero tolerance for sexual exploitation and abuse. Swaniti Initiative will not tolerate its staff, associates, partners, or any other representatives associated with the delivery of its work to engage in any form of sexual exploitation or abuse. Vulnerable adults, women, and children are particularly at risk of sexual exploitation and abuse. Swaniti Initiative is committed to protecting all communities that the organization works with from sexual exploitation and abuse at all times. Please see the definitions for a full outline of who is included in the community.

The purpose of the PSEA Framework, including the policy, procedures, and resources, is to establish an outline of the importance of the framework and clear procedures. The PSEA Framework also affirms Swaniti Initiative's commitment to national and international measures for protection from sexual exploitation and abuse.

The provisions of this policy will be in addition to and not in derogation of the provisions of any other local laws (penal/civil) prevailing in the State/Country relating to Sexual Exploitation and Abuse.

This policy ensures that all Swaniti Initiative staff, associates, and partners are aware of their roles and responsibilities in keeping communities and stakeholders safe from any form of sexual exploitation or abuse. The policy clarifies definitions and responsibilities regarding prohibited behaviour and the associated PSEA procedures outline the reporting and investigation processes.

2. Accountability Statement

Swaniti Initiative takes this policy very seriously, and the mandate prohibiting any form of sexual exploitation and abuse comes from Swaniti Initiative's Talent Management Team and Board of Directors.

The PSEA policy applies to all Swaniti Initiative staff, associates, and partners who must comply with its requirements and understand the sanctions that may be applied for breaches of the policy. Where required by law or local practices, Swaniti Initiative's Central office or Country Offices may enhance the standards as set out in this policy. This commitment will be evidenced through signing the policy and the Code of Conduct (Ref: Talent Management Policy). Training in this policy is mandatory for all Swaniti Initiative staff, associates, and partners.

The Trustee of Swaniti Initiative is ultimately accountable for this policy. The Trustees of Swaniti Initiative and Talent Management Team are responsible for its implementation. It is the responsibility of all representatives of the Swaniti Initiative to raise any concern regarding sexual exploitation and abuse. Swaniti Initiative takes all concerns and complaints seriously and will initiate a comprehensive investigation of complaints that are in violation of this policy and take disciplinary and possibly legal action as warranted.

3. Policy Approach

This policy details how Swaniti Initiative achieves its obligations and applies to all staff, associates and partners regardless of their location.

4. Framework Principles

This policy and the entire Safeguarding Framework are guided by the following principles:

a. Safeguarding

Swaniti Initiative is committed to all community members as outlined in the definitions as having the right to safeguarding and protection from sexual exploitation and abuse irrespective of ability, ethnicity, faith, gender, sexuality, and culture. A key principle within this is that all processes are survivor-led. Swaniti Initiative commits to survivors leading the complaint process where it is possible and appropriate to do so.

b. Shared Responsibility

For the PSEA policies and practices to be effective in reducing the risks to beneficiaries and communities, all at Swaniti Initiative must share the responsibility for implementation and improvement. As such, a failure at one level of the organization constitutes a failure at all levels of the organization.

c. Effective Communication

Swaniti Initiative effectively communicates with all staff, associates, and partners in simple and accessible language to create a positive and accessible culture where responsibilities for PSEA are clear.

d. Continuous Improvement

Swaniti Initiative provides assessment, reflection, and feedback mechanisms to inform the organization of any improvements that can be made to policies and practices. These mechanisms include quarterly incident reviews, as well as regular policy reviews and refresher training.

e. Dignity and Respect

Swaniti Initiative creates a work environment where the principles of dignity and respect for all staff, associates, and partners, in all locations are at the heart of what the organization does. Included in this are the principles of being non-judgmental when hearing the concerns and complaints of survivors of sexual exploitation and abuse.

f. Zero Tolerance

Swaniti Initiative has zero tolerance for any form of sexual exploitation and abuse.

g. Confidential

Swaniti Initiative Is committed to confidentiality and information will not be shared outside of the PSEA/Safeguarding Committee unless it is necessary, and the safety of the person involved is a recognized concern.

5. Policy Implementation

5.1 Policy Map

This policy will ensure that it examines the SEA record of individuals during hiring and guides Swaniti Initiative staff through the definitions of sexual exploitation and abuse as well as governance and responsibilities. The associated procedures and resources will provide information on how to report any complaints, the format of the reporting, and how these complaints will be managed.

5.2 Governance

The Trustees have ultimate responsibility for this policy and the PSEA Framework and its proper management, using a systematic approach. As such, the Trustees will receive a summary of any reported sexual exploitation and abuse incidents and follow-up measures taken at each Talent Management Team meeting and Board of Trustees meeting, respectively.

5.3 Responsibilities

Swaniti Initiative is committed to following through with the following measures to ensure that the organization is observing its PSEA commitments:



5.4 Swaniti Initiative's Obligations

Swaniti Initiative believes that all people have a right to live their lives free from sexual exploitation and abuse and will not tolerate its staff, associate, or partners engaging in any sort of behaviour that puts beneficiaries or communities at risk. To that end, Swaniti Initiative commits to:

1. Creating a safe culture for both those it serves and those who work for and represent the organization.
2. Following through on any complaints and concerns promptly through its Safeguarding Committee and taking each complaint seriously.
3. Sensitizing staff, associates, and partners, about how to make a complaint.
4. Ensuring zero tolerance towards sexual exploitation and abuse.
5. Building a culture of dignity, honour, and respect where all those who work with

- and are served by Swaniti Initiative feel empowered to report complaints.
6. Educating staff, associates, and partners that sexual exploitation and abuse constitute gross misconduct and are grounds for termination of employment and possibly legal action, as per the governing laws of the State/Country.
 7. Providing information on how to report complaints and the investigation procedure.
 8. Ensuring that all staff, associates, and partners have access to the PSEA policy and procedures as well as all other related safeguarding policies.
 9. Providing training to all staff, associates, and partners on PSEA.

5.5 Reference Checklist for PSEA-Sensitive Recruitment and Performance Management

- Include a sentence in job announcements to notify candidates that background and reference checks will be conducted, and ethics is part of annual performance appraisals
- Require applicants to self-declare prior issues of sexual or other misconduct, termination of past employment, criminal records, and concerns registered with government authorities regarding contact with Vulnerable adults, women, and children, and to consent to the disclosure of any such information by their former employers during verification of references
- Conduct background checks (e.g., police records, I search) and contact references to the vet for former misconduct per local laws regarding employment, privacy, and data protection
- Ensure gender-balanced interview panels during hiring processes and conduct gender-neutral interviews.
- Ask candidates interview questions about ethics and ethical dilemmas (e.g., What's your idea of an ethical organization? Tell me about a time when you faced an ethical challenge).
- Require candidates to review and sign the code of conduct before being offered a contract
- Include a PSEA clause in employment contracts, including when subcontracting
- Outline disciplinary measures in the event of proven SEA allegations (e.g., termination of contract)

- Include training in PSEA as part of the onboarding process and provide refresher courses at regular intervals during employment tenure
- Include adherence to code of conduct (e.g. participation in PSEA trainings) in performance appraisals of staff
- Include in the performance appraisals of senior staff their effectiveness in creating and maintaining an environment which prevents and responds to SEA.
- Freeze professional advancement/recruitment opportunities of individuals under investigation.
- In cases of confirmed misconduct, take robust disciplinary action (e.g. dismissal, suspension, written censure, or other administrative/corrective measures) and, where this involves possible criminal conduct, consider reporting the incident to local law enforcement authorities.
- Maintain an internal database documenting any disciplinary measures on personnel, including dismissals, to avoid rehiring them at a later point in time.
- Systematically share relevant information of personnel known to have committed SEA with other potential employers during background checks, to the extent legally possible.

6. Responsibilities

6.1 Staff Responsibilities

All staff, associates, and partners are required to adhere to this policy at all times and are obliged to report any suspicions of sexual exploitation and abuse of others. All staff, associates, and partners will be provided with the Organization's Code of Conduct.

6.2 Manager Responsibility

All Trustees hold overall accountability for this Policy and its Implementation. Managers also have a responsibility to support and develop systems that maintain an environment where all parties involved with the Swaniti Initiative understand how to behave, how to raise complaints and concerns, and what action will be taken.

Personnel	Roles and Responsibilities
Management	• Provide oversight of PSEA prevention and response • Review and update PSEA-related policies and guidance • Ensure attention and resources to PSEA across the organization • Facilitate and oversee investigations of SEA allegations • Coordinate with other organizations on PSEA, including donors
PSEA Focal Point (in coordination with gender/GBV/CP personnel where available)	• Support senior management to meet their PSEA-related responsibilities • Report concerns or issues with PSEA implementation to senior management • Receive reports of SEA allegations and coordinate the response • Conduct training and awareness-raising of personnel and others on PSEA • Coordinate with other relevant actors on PSEA, including inter-agency efforts
Human Resources	• Conduct screening for past SEA violations, and other code of conduct and policy violations (e.g. fraud, corruption, abuse of power), as part of recruitment process • Ensure all personnel sign the organization's code of conduct • Integrate a PSEA clause in contract agreements, including when subcontracting • Support communication with personnel during investigation of SEA allegations • Keep PSEA-related documents of personnel on file, including signed codes of conduct
z	• Uphold the code of conduct and PSEA-related policies • Actively participate in PSEA-related trainings and awareness-raising efforts, including support for dissemination of PSEA materials • Report allegations of SEA through the designated reporting channels • Participate in investigations of SEA allegations as appropriate • Identify and mitigate/avoid SEA-related programme risks <i>(particularly for personnel involved in programming)</i>

7. PSEA/Safeguarding Committee

A PSEA/Safeguarding Committee has been established at the HQ level and similar will be established in each field location. The PSEA/Safeguarding Committee is comprised of 5 members:

- a. One woman in a Senior Management Role
- b. One person from the Talent Management Team
- c. Two members will be from across different departments/verticals in the country/region program.
- d. A fifth member who is an external expert in harassment, sexual exploitation, or abuse.

All PSEA/Safeguarding Committees will ensure that there is diversity and equal gender representation in the committee.

The PSEA/Safeguarding Committee will be responsible for informing and training all staff in safeguarding, PSEA, and harassment policies and procedures. They will also be responsible for receiving and investigating any safeguarding complaints, including PSEA.

The PSEA/Safeguarding Committees will be trained in all of the Safeguarding policies as well as reporting and investigations. The PSEA/Safeguarding Committee will also be provided with specialized psychological first-aid training so that they are able to offer appropriate support as required.

7.1 Terms of reference for PSEA Focal point

1. Purpose

The purpose of the PSEA focal point is to have a designated staff member who supports senior management in coordinating the development and implementation of PSEA policy and procedures.

2. Scope of Work

Key roles and responsibilities of PSEA focal points include:

Prevention

- Conduct periodic assessments of Swantiti's PSEA policies and practices and suggest improvements to senior management.
- Conduct training and awareness-raising sessions on PSEA for all personnel on a regular basis.
- Work with human resources and other relevant personnel on PSEA-related aspects, including ensuring that all personnel sign the code of conduct and that screening for past SEA violations is a regular part of the recruitment process.

- Facilitate awareness-raising campaigns with beneficiaries and local communities on the definition of SEA, the standards of conduct expected of Swaniti's personnel, and the various mechanisms for raising SEA allegations or concerns, including contact details.

Vetting of SEA allegations

- Manage the development of internal procedures for personnel to report incidents of sexual exploitation and abuse safely and confidentiality.
- Receive reports of SEA allegations and related information and coordinate the response according to relevant procedures.
- Report concerns or issues with PSEA implementation to senior management.
- Coordinate with the PSEA/Safeguarding Committee and the concerned persons adhering to the confidentiality clauses.

Response to SEA allegations

- Once a complaint is received, coordinate Swaniti's response, including referral of SEA survivors for immediate, professional assistance and referral of the case for further investigations to the PSEA/safeguarding committee.

Other responsibilities

- Coordinate Swaniti's PSEA activities with relevant organizations, including inter-agency initiatives, as appropriate.
- Support senior management in implementing other PSEA-related activities, as appropriate.

3. Competencies and Experiences

- Proven integrity, objectivity, and professional competence
- Demonstrated sensitivity and knowledge of cultural and gender issues
- Fluent in English and Hindi
- Demonstrated experience of working directly with professionals and alike employee groups
- Proven communication skills

Upon appointment, the focal point will undergo organization-specific training on PSEA, as soon as feasible.

8. Confidentiality of Complaint

Swaniti Initiative will protect the confidentiality of sexual exploitation and abuse allegations to the greatest extent possible to protect the integrity of the investigation and prevent embarrassment, further discrimination or harassment, or retaliation.

Confidential or sensitive information obtained by any staff member during an investigation shall not be disclosed to others unless required by law. Concerns of individuals regarding the confidentiality of information provided by them will be handled as sensitively as possible, and information must be shared on a 'Need to Know' basis that is, only those who need to be informed so they can support an investigation or because they hold overall accountability will be given information, and they will receive only as much information as they need to be effective.

If information is shared confidentially which relates to a child or suggests that someone's life is in danger, then action will need to be taken outside of standard confidentiality procedures to ensure that everyone is safe. This will be managed on a case-by-case basis, and the safety and well-being of the child or adult in question is always paramount. As noted above, only those who need to know will be informed so they can take effective action.

Swaniti Initiative cannot guarantee, however, complete confidentiality, because the organization cannot conduct an effective investigation without revealing certain information to the alleged perpetrator and potential witnesses. Swaniti Initiative will share information about allegations of sexual exploitation, abuse, and harassment only with those who need to know about it. Records relating to sexual exploitation, abuse, and harassment complaints will also be kept confidential on the same basis.

Appropriate disciplinary action, including possible dismissal, will be taken against the person who purposely and intentionally disclose the identity of the survivors as per the code of conduct.

9. Whistle-Blowing

As referred to in Swaniti Initiative's whistle-blowing policy, all disclosures will be treated in confidence. Swaniti Initiative may maintain (if required) a third-party secure reporting system to ensure that all staff, partners, and vendors have recourse in the event of possible misconduct. Reports may be submitted for investigation through email or handwritten letters to the Talent Management Team or any Senior Management Authority.

10. Prohibited Retaliation

Swaniti Initiative maintains a zero-tolerance policy for retaliation against anyone for reporting sexual exploitation or abuse, assisting in making a complaint, or participating in an investigation.

Any staff, associate, or partner who makes a good-faith complaint of sexual exploitation or abuse, assists, testifies, or participates in any investigation or proceeding, or who reasonably opposes such conduct in the workplace will not be adversely affected in the terms and conditions of his or her employment and will not be discriminated against or discharged for engaging in such activity.

Retaliation not only affects the recipient but also can spread rapidly throughout the Swaniti Initiative. It destroys faith in Swaniti Initiative's leadership and can damage employee morale.

Complaints of retaliation will be promptly investigated. If retaliation is substantiated, appropriate disciplinary action, including possible dismissal, will be taken.

Examples of retaliation:

Some examples of retaliation include but are not limited to the following:

- Termination, demotion, disadvantageous transfers or assignments, refusals to promote, threats, reprimands, or negative evaluations, exclusion from group activities, not assigning the work, etc
- Co-worker hostility or retaliatory harassment, which includes intimidation, gossip, rumours, insults, or otherwise offensive conduct that would subject a person to ridicule or humiliation.
- Any action or combination of actions that is reasonably likely to materially and adversely affect an employee's job performance or opportunity for advancement.

11. PSEA Commitments

All Swaniti Initiative staff, associates, and partners are expected to conduct themselves per the PSEA policy. Following are the core commitments relating to sexual exploitation and abuse that all staff, associates, and partners are expected to follow. The following behaviours are prohibited:

11.1 Sexual Activity with Children and Vulnerable Adults

Sexual activity with children (persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of the child is not a defence.

Sexual activity with vulnerable adults, as outlined in the definitions, is also prohibited.

11.2 Child Marriage

Any staff, associates, or partners who engage in child marriage (marriage to anyone under the age of 18) will violate the PSEA policy. As per the definition of child marriage, anyone under the age of 18 is not able to give or withhold consent and is considered a form of sexual violence. Any staff married to a child under the age of 18 as per the custom or law of their country, before the Swaniti Initiative PSEA policy came into force will not be subject to disciplinary action. Swaniti Initiative, however, prohibits any such relationship from occurring once the PSEA policy comes into effect.

11.3 Sexual Activity with Swaniti Initiative Beneficiaries

Sexual activity with any beneficiary is prohibited due to inherently unequal power imbalances. A Swaniti Initiative beneficiary is defined as anyone who receives services or support from Swaniti Initiative or a Swaniti Initiative partner.

- **Grooming and/or Coercion**
 - Any grooming and/or coercion of a child or vulnerable adult to obtain sex is prohibited.

11.4 Sexual Exploitation

Any form of sexual exploitation is prohibited including:

- **Buying Sex**

Exchange of money, material assistance, employment, goods or services for sex, including sexual favours or other forms of humiliating, degrading or exploitive behaviour is prohibited.
- **Profiting from Sexual Exploitation**

Any monetary, social, or political gain from sexual exploitation is prohibited.

11.5 Sexual Harassment

Any act of sexual harassment including unwelcome sexual advances or requests for sexual favours is prohibited both under the PSEA policy and the Anti-Harassment policy.

11.6 Sexual Violence

Any acts of sexual violence as outlined in the definitions in prohibited. This includes, but is not limited to, sexual violence including intercourse, sexual touching, and threats of sexual violence.

11.7 Physical/Emotional Abuse

As outlined in the code of conduct and the policy on the Prevention of Sexual Harassment, any physical or emotional abuse is prohibited.

This list may be expanded at any time and details will be communicated with staff, associates and

partners through the Concerned Committee. Additional prohibited behaviours related to abuse can be found in the Talent Management Policy.

12. Consequences

Any staff, associate, or partner who violates the PSEA policy will face disciplinary procedures, which may result in disciplinary action, termination of employment or contract and/or referral to the appropriate law enforcement agency or legal authority.

13. Communication and Training

It is Swaniti Initiative's responsibility to ensure that all staff, associates and partners are aware and fully compliant with the PSEA policy. To take the steps to prevent any forms of sexual exploitation or abuse, Swaniti Initiative will ensure that:

1. Training is provided for all staff who have a specific responsibility for implementing this Policy and associated Procedure or who may be involved in dealing with complaints, which arise.
2. Awareness raising training is provided to all staff, associates, and partners on PSEA. The training will equip staff, associates, and partners to develop awareness as well as an understanding of when and how to report any concerns.
3. Proactive steps are taken to communicate the zero-tolerance message.
4. All staff is informed of and trained in the policy and procedure.
5. All staff is aware of the definitions under this policy.
6. All staff is aware of reporting procedures.
7. All staff have been provided with this policy and are categorically requested to read and understand the same in the best possible manner.

13.1 Annual Training Plan on PSEA:

Topics		Date	Facilitator
SEA: Policy and responsibilities of employees	Definition of SEA	Training sessions are conducted on PSEA during Induction of new employees.	
	Need of SEA		
	Organization's policy on SEA		
	Responsibility of employees for PSEA		

Institutional arrangements for complaint and investigation	Mechanism to flag SEA	Refresher training are conducted during the yearly review of the entire organization	Talent Management team
	Procedure investigation for complaints regarding SEA.		
	Concerned committee and its members		
Review and recommendations	Annual report of the committee		
	Preventive measures that may be taken in general		

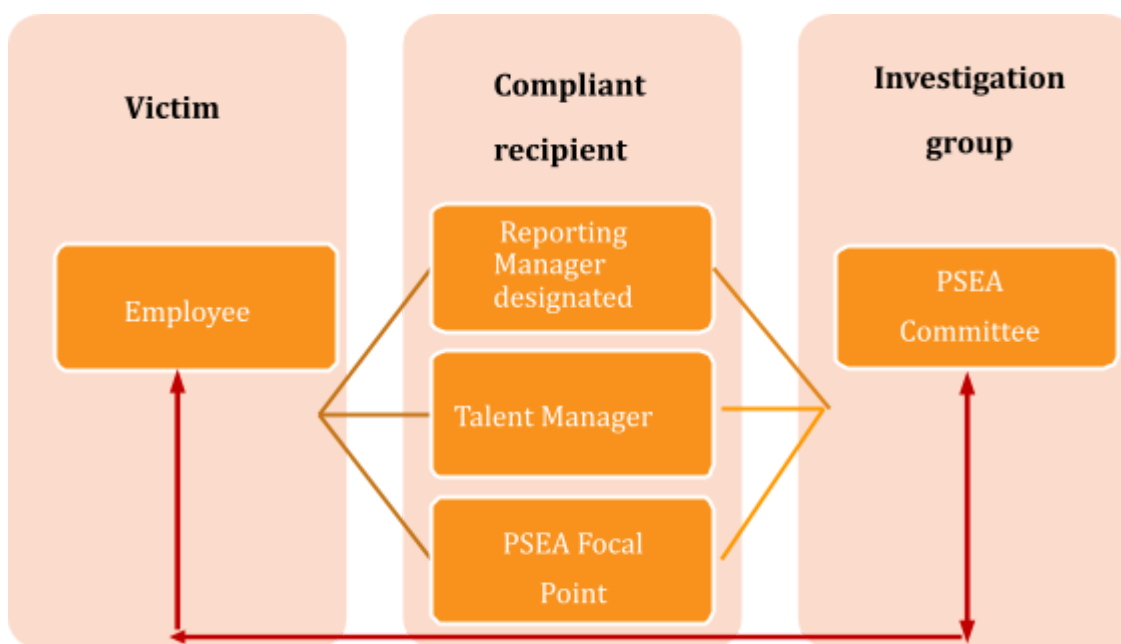
13.2 Standard training Agenda for PSEA

ACTIVITY	EST. TIME	RESOURCES
INTRODUCTION		
Welcome and introduction - Introduction of trainer(s) and learners - Overview of training agenda - Expected learning outcomes	15 min	Handout: Training agenda
Presentation: Key definitions and concepts - Definition of SEA - Swaniti's Zero-Tolerance Policy on SEA - Roles and responsibilities of personnel in preventing and responding to SEA	15 min	Handouts: Copies of SG's Bulletin (ST/SGB/2003/13), organization's code of conduct and other relevant documents
Case scenarios: Is this SEA? Present practical scenarios and discuss which ones may be cases of SEA and why	45 min	
Group exercise: Impacts of SEA Ask learners to identify the (potential) consequences of SEA on a) the survivor(s), b) the community, c) the organization, and d) others	30 min	

Presentation: Overview Overview of responses to SEA (prevention,	20 min	Handout of relevant tools of UNICEF's <i>PSEA Practical Guide Toolkit for UNICEF and Partners</i>
- reporting, investigation, and referral) - Guiding principles (including survivor-centered approach)		(e.g., organizational self-assessment, action plan template, PSEA risk assessment and mitigation)
Group discussion: Prevention Discuss how to identify and mitigate risks of SEA in their context (What are warning signs? Why are they ignored? What more can the organization do to prevent SEA?)	45 min	
Presentation: Reporting - Mandatory reporting - How to report SEA allegations, including confidentiality issues and “the best interest of the child” - Protections for those reporting SEA allegations	20 min	Handout with contact information of reporting channels and policy for protecting whistleblowers and/or complainants
Presentation: Investigations - Overview of investigation process - Consequences for personnel if allegations are substantiated - Responsibilities of personnel to fully participate in any investigation	15 min	
Presentation: Assistance - Service needs of survivors (and witnesses) - Survivor-centered approaches and informed consent - Referral pathways	10 min	
Conclusions - Summary of key learnings - Ask each learner to provide at least one answer to the question: “How do you plan to apply what you just learned in your work?” - Feedback on training	20 min	Feedback forms

14. PSEA Reporting Procedures

To report any incident of SEA, the attached format is to be used. The channel to report any incidents of sexual exploitation or abuse is as displayed below:



14.1 Incident Report Form for SEA Allegations

CONFIDENTIAL: Please restrict access to this document and keep it stored safely (e.g. using passwords or encryptions for computers and locking lock offices when unattended). Always use code names when referring to individuals involved in the case, omit information that could reveal identities (e.g. date of birth, address, phone number, description of unique physical traits), and keep information on the identity and personal details of persons involved separate from the incident and related reports.

1. Details on how, when, and by whom, the allegation was received:
2. Description of alleged incident, including dates, times, and locations:
3. Description of alleged or suspected survivors (e.g. name, age, gender, ethnic origin/nationality, specific needs);
4. Description of alleged or suspected perpetrators (e.g. name, age, gender, nationality, organizational affiliation/position, previous record of misconduct):
5. Actions taken by the organization in response to allegations to date (e.g. referral for assistance, investigations, notification of UN/Host Government);
6. Actions taken by other organizations or entities (e.g. UN, Host Government) in response to the allegation:
7. Requested support from partners (e.g. support for SEA survivors, investigations)

Report transmitted by:	
Name:	Contact info (email, phone):
Title:	Date:

14.2 Failure to Report

The Code of Conduct as well as the Inter-Agency Standing Committee (IASC) Core Principles on PSEA state that it is the duty and the responsibility of all staff, associates, and partners to report any PSEA concerns. Failure to report may lead to disciplinary action.

15. Support for Survivors

Support will be offered to survivors regardless of the outcome of any investigations. This support can include specialist psychosocial counseling and/or access to other specialist support as needed.

16. Referral Form for Survivor

CONFIDENTIAL: Please restrict access to this document and keep it stored safely.

Note: Please share copies of filled-out referral forms with the survivor and receiving agency and keep a copy for the organization's internal records and follow-up.

Referring agency	
Agency/org:	Contact:
Phone:	Email:
Location	

Receiving agency	
Agency/org:	Contact:
Phone:	Email:
Location	

Survivor information	
Name:	Phone:
Address:	Age:
Sex	Nationality:
Language:	ID number
If the survivor is a minor (under 18)	
Name of primary caregiver:	Relationship to child:
Contact information for the caregiver:	Is child separated or unaccompanied? Yes No
Caregiver is informed about the referral? Yes No (If no, explain)	

Background Information/Reason for referral and services already provided

Has the survivor been informed of the referral? Yes No (If no, explain below)

Has the survivor been referred to any other organization?
Yes No (If yes, explain below)

Services requested

Mental Health

Protection

Shelter

Services

Services Legal

Material Assistance

Psychosocial

Assistance

Nutrition

Support Social

Education

Support for children born as a result of SEA

Services Medical

Livelihood

Care

Support

Please explain any requested services:

Consent to release information. (Read with the survivor/ caregiver and answer any questions before s/he signs below. Sign on behalf of the survivor/caregiver if consent is given verbally and the survivor/caregiver cannot sign.)

I, _____ (**survivor name**), understand that the purpose of the referral and of disclosing this information to _____ (**name of receiving agency**) is to ensure the safety and continuity of among service providers seeking to serve the client. The service provider, (**name of referring agency**), has clearly explained the procedure of the referral to me and has listed the exact information that is to be disclosed. By signing this form, I authorize this exchange of information.

Signature of the responsible party (survivor or caregiver if a child):

Date (DD/MM/YY):

Details of Referral

Any contact or other restrictions? Yes No (If yes, please explain below)

Referral delivered via:

Phone (emergency only)

E-mail

Electronically (e.g., App or database)

In Person

Follow-up expected via:

Phone

E-mail

In Person.

By date (DD/MM/YY):

Information agencies agree to exchange in follow-up:

17. Policy Review

To meet with related best practices, Swaniti Initiative agrees to review this policy and the entire PSEA Framework every two years, as a minimum. It is the responsibility of the Trustees or the Talent Management Team to complete this review, in collaboration with any key internal stakeholders or external third-party providers.

Annexure – 1

Definitions

1. Child

A child is any individual under the age of 18, irrespective of local country definitions of when a child reaches adulthood.

2. Vulnerable adults:

Those aged over 18 years and who identify themselves as unable to take care of themselves/ protect themselves from harm or exploitation;

or

Who, due to their gender, mental or physical health, disability, ethnicity, religious identity, sexual orientation, economic or social status, or as a result of disasters and conflicts, are deemed to be at risk.

3. Physical Abuse

Physical abuse occurs when a person purposefully injures or threatens to injure a child or vulnerable adult. This may take the form of slapping, punching, shaking, kicking, burning, shoving or grabbing. The injury may take the form of bruises, cuts, burns, or fractures.

4. Child Emotional Abuse

Emotional abuse is inappropriate verbal or symbolic acts toward a child or a pattern of failure over time to provide a child with adequate non-physical nurture and emotional availability. Such acts have a high probability of damaging a child's self-esteem or social competence.

5. Neglect

Neglect is the failure to provide a child or vulnerable adult with the support and conditions that are culturally accepted as being essential for their physical and emotional development and well-being.

6. Vulnerable Adult Abuse

A Vulnerable Adult is defined as someone “who is or may be in need of community care services by reason of mental or other disability, age or illness; and who is or may be unable to take care of him or herself, or unable to protect him or herself against significant harm or exploitation”. Vulnerable Adult Abuse can take many forms including: physical, sexual, psychological, financial/material, discriminatory, domestic abuse and self-neglect.

7. Sexual Abuse

The term “sexual abuse” means the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

8. Child Sexual Abuse

Child sexual abuse is any sexual activity, or actual or threatened physical intrusion of a sexual nature, with someone under the age of consent or under 18, is considered sexual abuse.. It may include, but is not limited to, the inducement or coercion of a child to engage in any unlawful sexual activity, the exploitative use of a child in prostitution or other lawful sexual practices, or the exploitative use of pornographic performances and materials.

9. Grooming

Grooming is behaviour that an offender uses to procure sexual activity from a child. It can include building trust with children and/or their carers to gain access to children to sexually abuse them.

10. Online Grooming

Grooming may be in person as above, or online where the groomer sends electronic messages with the goal of engaging the child in sexual activity.

11. Coercion

Coercion covers a whole spectrum of degrees of force. Apart from physical force, it may involve psychological intimidation, blackmail, or other threats. For instance, threats of being dismissed from a job or of not obtaining a job that is sought. It may also occur when a person is unable to give consent.

For example, while drunk, drugged, asleep or mentally incapable of understanding the situation.

12. Sexual Exploitation

The term “sexual exploitation” means any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially, or politically from the sexual exploitation of another.

13. Modern Slavery

Slavery is a situation where a person exercises (perceived) power of ownership over another person. Related terms include forced labour, which covers work or services that people are not doing voluntarily but under threat of punishment; human trafficking, which involves deceptive recruitment and coercion and bonded labour, which is demanded in repayment of a debt or loan. Modern slavery encompasses a spectrum of labour exploitation, ranging from the mistreatment of vulnerable workers to human trafficking to child labour and forced sexual exploitation.⁹

14. Sexual Violence

Sexual violence is:

- a. Any sexual act or attempt to obtain a sexual act
- a. Unwanted sexual comments or advances or acts to traffic that are directed against a person's sexuality using coercion by anyone, regardless of their relationship to the victim, in any setting, including at home and at work.

Three types of sexual violence are commonly distinguished: sexual violence involving intercourse (i.e. rape), contact sexual violence (i.e. unwanted touching, but excluding intercourse) and noncontact sexual violence (i.e. threatened sexual violence, exhibitionism and verbal sexual harassment). While coerced sex may result in sexual gratification for the perpetrator, its underlying purpose is to express power and dominance over the other person.

15. Child Marriage

The custom of marrying young children, particularly girls, is a form of sexual violence as children are unable to give or withhold consent.

16. Sexual Harassment

Sexual harassment includes 'unwelcome sexual advances, requests for sexual favors, and other conduct that creates a coercive, hostile, intimidating, or offensive work environment'. The harassment of a sexual nature may be directed to a person of the same or opposite sex.

The key elements are that the behaviour is **uninvited**, **unreciprocated** and **unwelcome** and causes the person involved to feel threatened, humiliated or embarrassed. The behaviour may also be determined to be sexual violence and harassment if:

- a. Submission to such conduct is explicitly or implicitly made a term or condition of employment.
- a. Submission to or rejection of this conduct is used as a basis for an employment decision affecting the staff.
- b. Such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment.

Please refer to Swaniti Initiative's Anti-Harassment policy & procedure for more information.

17. Communities

The communities that Swaniti Initiative works with includes, but isn't limited to, health service providers at facilities, outreach facilities, frontline health workers, any other service providers, women, men, girls, boys, people with special needs, vulnerable adults and marginalised groups.

Swaniti Initiative staff refers to individuals who receive a regular salary for work in any part of Swaniti Initiative Inc., including all Country Offices, Field Offices, Headquarters and any other location where Swaniti Initiative operates.

Swaniti Initiative associates refers to a range of paid and non-paid individuals who have committed to work with or support Swaniti Initiative. It includes volunteers, interns, and consultants, and contractors.

Swaniti Initiative managers refers to Swaniti Initiative staff who have responsibility for line managing or supervising the work of Swaniti Initiative staff or Swaniti Initiative associates.

Swaniti Initiative partners refers to staff and/or representatives of partner organizations and local governments when operating in the partnership agreement with Swaniti Initiative.

18. Forced marriages:

Marriages in which one and/or both parties, have not personally expressed their full and free consent to the union.

19. Gender Based violence

“Gender-based violence is an umbrella term for any harmful act that is perpetrated against a person’s will, and that is based on socially ascribed (gender) differences between males and females”

- Acts of gender-based violence are a form of sexual abuse and can affect any stakeholder, whether staff or community members.
- They are often carried out by men towards women and can result, in part, from power imbalances. Therefore, this is regarded as a significant Safeguarding issue.

20. Trafficking

- Trafficking is a process of enslaving people, coercing them into a situation with no way out, and exploiting them.
- People can be trafficked for many different forms of exploitation such as forced transactional sex, forced labour, forced begging, forced criminality, domestic servitude, and forced marriage, and forced organ removal.

21. Transactional Sex

- This is the exchange of money, employment, goods, or services for sex, including sexual favours.
- Transactional sex is strictly prohibited along with any other forms of humiliating, degrading, or exploitative behaviour, including exchange of assistance that is due to the community.
- Swaniti Initiative does not make judgments against rights holders or others who choose to

take part in such transactions but recognizes the inherent unequal power dynamic and so prohibits staff from exchanging money or anything else for sex.

22. Female Genital Mutilation

“Female genital mutilation (FGM) comprises all procedures that involve partial or total removal of the external female genitalia, or other injury to the female genital organs for non-medical reasons.”

- FGM is recognized internationally as a violation of the human rights of girls and women. It reflects deep-rooted inequality between the sexes and constitutes an extreme form of discrimination against women. It is nearly always carried out on minors and is a violation of the rights of children.
- The practice also violates a person's rights to health, security, and physical integrity, the right to be free from torture and cruel, inhuman, or degrading treatment, and the right to life when the procedure results in death.

Annexure – 2

Action Plan on PSEA

ACTION	PERSON RESPONSIBLE	REQUIRED/ AVAILABLE RESOURCES	TARGET DATE FOR COMPLETION	STATUS (i.e., not started/in progress/completed)
Core Standard 1: Organizational Policy An organizational policy on PSEA exists and describes appropriate standards of conduct, other preventive measures, reporting, monitoring, investigation and corrective measures.				
<u>Example 1:</u> Revise Recruitment and Talent Management Policy to include a definition of SEA; standards of behaviour; & zero tolerance of SEA;				
Core Standard 2: Organizational Management and HR Systems The organization’s management and HR systems account for PSEA by:				
<u>1:</u> The organization’s contracts and partnership agreements include a standard clause requiring contractors, suppliers, consultants and sub-partners to commit to a zero-tolerance policy on SEA and to take measures to prevent and respond to SEA, and contractors, suppliers, consultants and sub-partners to commit to a zero-tolerance policy on SEA and to take measures to prevent and respond to SEA, and				
<u>2:</u> There is a systematic vetting procedure in place for job candidates (e.g. reference checks, police records, Internet searches) in accordance with local laws regarding employment, privacy and data protection, including checking for prior involvement in SEA or other safeguarding concerns.				

<u>Example 2: Revise templates for employment agreement and service contract to include clause on PSEA</u>				
Core Standard 3: Mandatory Training <u>Required 1:</u> The organization holds mandatory training for all personnel on the organization’s SEA policy and procedures and can provide documentation evidencing regular training, and <u>Required 2:</u> The training includes 1) a definition of SEA (that is aligned with the UN's definition); 2) a prohibition of SEA; and 3) actions that personnel are required to take (i.e. prompt reporting of allegations and referral of survivors).				
<u>Example 5:</u> Develop full day face to face PSEA training package, meeting the criteria described in the Agenda of the training of the PSEA				
<u>Example 6:</u> Revise the Orientation Package for new staff to include a requirement for PSEA training				
<u>Example 7:</u> Include PSEA Refresher training in the annual all-staff retreat as a standing agenda item				
Core Standard 4: Reporting The organization has mechanisms and procedures for personnel, beneficiaries and communities, including children, to report SEA allegations that comply with core standards for reporting (i.e. safety, confidentiality, transparency, accessibility) and ensures that beneficiaries are aware of these.				
<u>Example 8:</u> Design, translate, and widely disseminate awareness-raising and reporting mechanisms posters in all work sites or websites				
Core Standard 5: Assistance and Referrals The organization has a system to ensure survivors of SEA, including children, receive immediate professional assistance, referring them to relevant service providers.				
<u>Example 9:</u> Using Tool 10 as a template, develop a Referral Form				

<u>Example 10:</u> Advocate for local PSEA Network to develop a Contact List of qualified Service Providers for referrals for use by all NGOs in the sector				
Core Standard 6: Investigations The organization has a process for investigation of allegations of SEA and can provide evidence that it has appropriately dealt with past SEA allegations, if any, through investigation and corrective action.				
<u>Example 11:</u> Adapt and adopt standard tools for Investigations				